



File No.: EXP202308041

RESOLUTION OF RIGHTS PROCEDURE

Once the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD) have been carried out, the following FACTS have been established:

FIRST: A.A.A. (hereinafter, the claimant) exercised the right of Access, Rectification, and Erasure against FUNDACIÓN SPÍNOLA (hereinafter, the respondent) without their request receiving the legally established response. The claimant states that they are the parent of a minor enrolled in a center of the respondent, receiving support due to their special needs. They point out that the respondent center, without their authorization, has disseminated among the parents of students at the center, via WhatsApp, the Diversity Attention Plan (PAD) at the center, which refers to the issues concerning their child, exposing health data about them, which is incorrect, thereby exposing third parties to confidential data of the minor. A request for the rectification/deletion of the erroneous data from the PAD has been made, without receiving a response.

Furthermore, they indicate that on November 29, 2023, a meeting was held between the Coordinator of the Guidance Department of the respondent center and a clinical psychologist who has been treating the minor for three years, with the meeting being recorded by the Coordinator of the Department. They state that on November 29, 2023, they requested, via email, a copy of the recording since data concerning the minor was discussed, without receiving a response through the same channel; instead, they were personally informed that the recording had been lost, violating the duty of custody and security.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

THIRD: The result of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claims of the claimant were satisfied. Consequently, on July 20, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing. The aforementioned agreement granted the respondent a hearing procedure, so that within ten working days they could present the allegations they deemed appropriate.

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The party being claimed against, in summary, states regarding the right of access to the meeting in which data concerning the minor was discussed, that the recording has not been lost but rather that an error when attempting to record it resulted in it not being saved on the device.

“...In response to the exercise of the right of access received on November 29, 2022, regarding the recording maintained between the technical team and the private psychologist of the minor, and as was already verbally informed to you by the staff of the Center (a verbal response acknowledged by the claiming party (the father of the minor) by including it in the complaint submitted to the AEPD for alleged non-compliance with data protection regulations concerning this matter, in which it is stated that the Center responded that the recording had been lost), we inform you again through this means and for the sake of evidence of the response given, that the recording of the meeting between the Center's staff and your child's private psychologist was not lost, as they claim (we understand this was by error) in the complaint, but rather, as was indicated to you at the time, such a recording does not exist because it was never made due to a technical problem (lack of knowledge of the procedure to

activate the device used to make the recording) and therefore, it was not possible to fulfill your request because such a recording never existed...”

Regarding the rectification/deletion of the minor's diagnosis, it is unclear whether it has been addressed or not. Throughout the numerous documents presented by both parties in this complaint, we believe that the request for the rectification/deletion of a diagnosis (which the claimant requests) is mixed with the rectification/deletion of a report (which the respondent discusses). Therefore, the request has not been addressed or denied with justification.

“...in response to this request, we inform you that it is not possible to proceed with the deletion of the 2023 psychopedagogical evaluation report as it is an official document in the minor's file, the update of which is pertinent to carry out if deemed necessary, as is the case, due to the need to adjust the educational response to the needs of the minor, and the center has also been required by the DAT for the enrollment report in accordance with the content of the complete and updated psychopedagogical report. Regarding the DIAC and significant curricular adaptations, this extraordinary measure of attention to diversity was already included in the 2022 psychopedagogical report in the section “determination of educational needs expressed by the student,” indicating it as necessary, so it is also official documentation integrated into the minor's file. Therefore, the preservation of such documentation is necessary to fulfill the educational purposes for which it was created (always within the framework of the educational function, a public function entrusted to the competent Administration and to our Entity while the minor is enrolled in the Center). We understand that the data protection area is not competent to determine the legality of the contested documentation nor the procedure followed for its preparation by the competent professionals in the exercise of their public function and that this issue should be raised before the Educational Inspection of the corresponding district, the administrative and/or jurisdictional body competent in educational matters, to determine whether such documentation is lawful or not. If the competent body supports your claim and requests it from us, we will proceed to follow the instructions that the competent body provides us. However, and in consideration of the...

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rights that are effectively recognized in the data protection regulations, may request the exercise of the right of access to the information contained in said psychopedagogical evaluation report and subsequently request the rectification of those objective data that they consider inaccurate...”

FOURTH: After examining the written submission presented by the respondent, it is forwarded to the complainant, so that, within a period of ten working days, they may formulate any allegations they deem appropriate, summarizing, in essence, the following allegations:

The complainant states that the erroneous diagnosis of the minor remains unrectified/supressed. They assert that they have not been provided with the recordings of the meeting and denounce the respondent's behavior regarding the lack of privacy of the minor's data, especially considering its nature as medical data.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the respondent for analysis, requiring a response to this Agency within one month and to demonstrate that they had provided the complainant with the appropriate response.

The result of this forwarding did not allow for the understanding that the complainant's claims were satisfied. Consequently, on July 20, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure for the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the complainant was notified of the admission agreement. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of correcting any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

III

Rights of Individuals in Relation to Personal Data Protection

The rights of individuals in relation to personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject.

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The responsible party must inform the interested party and express their reasons in case they do not intend to comply with such request. The burden of proof of compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the responsible party.

The communication addressed to the interested party regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

In accordance with the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the interested party has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data." Regarding the right of access to personal data, according to the provisions of Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the responsible party may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the responsible party provides remote access to the data, considering the request fulfilled (although the interested party may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a period of six months, unless there is a legitimate reason for it. On the other hand, the request will be considered excessive when the affected party chooses a means other than the one offered that incurs a disproportionate cost, which must be borne by the affected party.

Like the other rights of the interested party, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others; that is, the right of access will be granted in such a way that it does not affect third-party data.

V

Right of Rectification

Article 16 of the GDPR, which regulates the right to rectify inaccurate personal data, establishes the following:

"The interested party shall have the right to obtain from the data controller, without undue delay, the rectification of inaccurate personal data concerning them. Taking into account the purposes of the processing, the interested party shall have the right to have incomplete personal data completed, including by means of a supplementary statement."

VI

Right of Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The interested party shall have the right to obtain from the data controller, without undue delay, the erasure of personal data concerning them, which shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or processed in another manner;
- b) the interested party withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and this is not based on another legal ground;
- c) the interested party objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the interested party objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;

e) the personal data must be erased for compliance with a legal obligation under Union or Member State law applicable to the data controller;

f) the personal data have been collected in relation to the offer of information society services referred to in Article 8(1).

2. When the data controller has made the personal data public and is obliged, under paragraph 1, to erase such data, the data controller, taking into account the available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the interested party's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply to the extent that processing is necessary:

a) for exercising the right of freedom of expression and information;

b) for compliance with a legal obligation which requires processing by Union or Member State law applicable to the data controller;

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responsible for the processing, or for the fulfillment of a mission carried out in the public interest or in the exercise of public powers conferred to the responsible party;

c) for reasons of public interest in the field of public health in accordance with Article 9, paragraph 2, letters h) and i), and paragraph 3;

d) for archiving purposes in the public interest, for scientific or historical research purposes, or for statistical purposes, in accordance with Article 89, paragraph 1, to the extent that the right indicated in paragraph 1 could make it impossible or seriously hinder the achievement of the objectives of such processing, or

e) for the formulation, exercise, or defense of claims."

VII

Conclusion

We will begin by stating that this resolution will address solely and exclusively whether the rights of access, rectification, and erasure have been respected. The other issues raised by the claimant, the potential security breaches of the respondent, or the conscious or unconscious negligence regarding the dissemination of the minor's personal and medical data, pointed out by the claimant, this Agency reserves the right to conduct an investigation if deemed appropriate outside of this resolution, in which case, it would inform the parties in due course.

That said, we will start by discussing the right of access and accepting the respondent's response that the requested recording does not exist, and since the claimant has been informed of what occurred, we consider this matter addressed.

However, the same does not apply to the right of rectification/erasure. The claimant is not requesting the deletion of a report but rather the rectification or erasure of an erroneous piece of data, the medical diagnosis that the center assigns to the minor in its reports. The claimant provides medical documentation regarding the request.

The respondent has not addressed this request as, in its allegations, it states that it cannot delete a report, but the issue of the erasure/rectification of the diagnosis with which the minor appears in its reports (the cause of the claim) has not been addressed, therefore, this claim is upheld on formal grounds regarding the right of access due to having been answered in an untimely manner, and it is upheld regarding the right of rectification/erasure.

In light of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD on formal grounds the claim made by A.A.A. against FUNDACIÓN SPÍNOLA regarding the right of access.

However, the issuance of a new certification by the respondent is not warranted, as the response was issued late, and no additional actions are required from the responsible party.

SECOND: TO UPHOLD the claim made by A.A.A. considering that the provisions of Articles 16 and 17 of the GDPR, rights of rectification and erasure, have been infringed, and to urge FUNDACIÓN SPÍNOLA to, within ten working days following the notification of this resolution, send the claimant a certification addressing the requested right or deny it with justification indicating the reasons why the request cannot be granted, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

THIRD: NOTIFY this resolution to A.A.A. and to FUNDACIÓN SPÍNOLA.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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